
8:30 a.m. Law and Motion

BLY, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.

CASE NUMBER: 25CV-0209458

Tentative Ruling on Motion to Compel Depositions: Plaintiffs Laura Bly, Julie Dowell, and David Eatchell, individually and as successors-in-interest to the Estate of Bettie Eatchel seek an order compelling Defendants to provide dates certain for the depositions of 13 witnesses pursuant to a properly served Notice of Taking Videotaped Depositions and Request for Production of Documents, within 3 days of the Court's order granting this motion. Defendants have filed an untimely Opposition, which the Court exercises its discretion to consider.

Defendants do not dispute that deposition dates and last-known contact information for the 13 noticed deponents have not been provided. Defendants do not oppose entry of an order compelling that information. Defendants request the Court allow Defendants 30 days from the hearing (rather than 3 calendar days) within which to provide dates and contact information. Defendants request that the Court decline to impose any monetary sanctions as the briefing does not request them. Defendants also do not oppose Plaintiff's request that the compelled depositions occur within 30 days of the hearing on this matter.

The Motion is **GRANTED**. Defendants are ordered to provide dates certain for the 13 noticed depositions within 15 days of today's hearing. Objections have been waived. No sanctions are imposed. The depositions are to occur within the next 30 days, unless otherwise agreed by the parties. The proposed order will be modified accordingly.

IN RE COFFMAN

CASE NUMBER: 26PB-0033441

Tentative Ruling on Petition to Approve Minor Compromise: Amy Coffman seeks an order approving the compromise of claim on behalf of her minor son Emmett Cardenas Coffman. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. The Court is prepared to find that the settlement is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner is required to appear. The Court will not require the appearance of the minor at today's hearing, as he is only five years old.

The Court will voir dire the Petitioner about the terms of the settlement and any other potential sources to increase the settlement amount such as an umbrella policy or other potential sources of insurance. The Court will also inquire as to whether the Petitioner sought independent legal advice. The Court will also inquire as to whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding

confirmation of funding the annuity.

COX VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0210602

Tentative Ruling on Motion to Strike Portions of Plaintiff's Complaint: Plaintiff Alan Cox, a former Deputy County Counsel, alleges causes of action for retaliation in violation of Labor Code section 1102.5, arising out of his refusal to carry out directives from his supervisors, County Counsel Joseph Larmour and Assistant County Counsel Patricia Weber, that he believed would require him to violate the law. Defendant County of Shasta moves to strike paragraphs 13 and 15 through 24 of the Complaint on the grounds that they disclose attorney-client privileged communications and attorney work product concerning the County's handling of two underlying litigation matters. Defendant has filed a related motion to seal the same paragraphs, which is addressed in a separate tentative ruling.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Chelsea Avent demonstrates compliance with the meet and confer requirement.

Requests for Judicial Notice: Plaintiff requests the Court take judicial notice of the Complaint, Plaintiff's Government Claim, the Request for Dismissal in Case No. 206370, the Request for Dismissal in Case No. 205955, the Order Approving Final Distribution in Case No. 32536, the Petition for Prior Court Approval to Engage in Litigation in Case No. 32536, the Lis Pendens in Case No. 205955 and the Ex Parte Petition for Final Discharge in Case No. 32536. The request is granted. "A court may take judicial notice of the existence of court records, prior court orders, or official acts of executive agencies, but it cannot take judicial notice of the truth of the matters asserted, factual findings, or hearsay allegations contained within those documents." *Steed v. Department of Consumer Affairs*, 204 Cal. App. 4th 112 (2012), *Licudine v. Cedars-Sinai Medical Center*, 3 Cal. App. 5th 881 (2016).

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. (Code Civ. Proc., § 437(a).)

Defendant moves to strike paragraphs 13 and 15-24 pursuant to CCP 436 and CRC 3.1322 on the grounds that they contain improper matter. Specifically, Defendant argues that these paragraphs contain attorney-client privileged communications. The attorney-client privilege protects confidential communications made in the course of the professional relationship for the purpose of obtaining or providing legal advice. Evid. Code, §§ 950-954; *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733. When the communication is a confidential one between attorney and client, the entire communication, including its recitation or summary of factual material, is privileged. *Id.* at 736. Internal communications among attorneys reflecting legal strategy, mental impressions, and case evaluation are further protected by the attorney work product doctrine. CCP § 2018.030(a).